

Court No. - 39

Case :- WRIT - C No. - 2425 of 2017

Petitioner :- Smt. Pachani Devi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Raj Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

The petition does not relate to recovery of any amount. Place this petition as fresh before the appropriate Court, if possible, on 23 January 2016.

Order Date :- 18.1.2017

Akram

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Chief Justice's Court

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Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Heard Sri Raj Kumar Singh, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondents 2 to 4.

Counsel for the respondents, at the outset, submits that the petitioner has an alternative remedy under Clause 7.1 of the Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum. On being confronted with this, counsel for the petitioner prays for withdrawal of the writ petition with liberty to the petitioner to approach the Consumer Grievance Redressal Forum under Clause 7.1 for redressal of his grievance and seeks direction to the Forum to decide his application within time frame. Petition is disposed of, as not pressed, with liberty as prayed. If the petitioner makes an application under Clause 7.1, as aforementioned, the Consumer Grievance Redressal Forum shall consider and decide the petitioner's application within a period of two weeks from the date of its presentation.

Order Date :- 24.1.2017

VMA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)